

2010 WL 2728011 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Raymond COLON, Plaintiff,

v.

THE CITY OF NEW YORK, P.O. **Tarik Clyburn**, Shield #15045, P.O. James Rooney,
Shield#8708 and P.O. James Fleming, Shield #7583 All of the 44th Precinct, Defendants.

No. 305494-2010.
July 6, 2010.

Verified Complaint

Papa Depaola and Brounstein, By: **John R. Depaola**, 42-40 Bell Boulevard Suite 500, Bayside, New York 11361, (718) 281-4000, Attorneys for Plaintiff.

RAYMOND COLON, by his attorneys, **PAPA, DEPAOLA AND BROUNSTEIN**, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **RAYMOND COLON** was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 17th day of March, 2010 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to [Section 50-H of the General Municipal Law](#) and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **P.O. **TARIK CLYBURN**, SHIELD #15045, P.O. JAMES ROONEY, SHIELD#8708 AND P.O. JAMES FLEMING, SHIELD #7583 ALL OF THE 44TH PRECINCT**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about March 16, 2008 at approximately 4:50 AM inside of 74 West 165th Street, County of the Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **RAYMOND COLON**, in an excessive manner about his person, causing him physical pain and mental

suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “7” with full force and effect as though set forth at length herein.

9. On or about March 16, 2008 at approximately 4:50 AM inside of 74 West 165th Street, County of the Bronx, State of New York the Defendants, jointly and severally did place Plaintiff **RAYMOND COLON** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “9” with full force and effect as though set forth at length herein.

11. On or about March 16, 2008 at approximately 4:50 AM inside of 74 West 165th Street, County of the Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx and there charged him with the crimes on Docket No.2008BX017245. The Plaintiff was thereafter held in custody over the course of 2 days before he was released on his own recognizance after arraignment. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs “1” through “11” with full force and effect as though set forth at length herein.

13. Upon information and belief, on or about March 16, 2008 and from that time until the dismissal of charges on or about March 4, 2010 which was a favorable termination for the accused by the Honorable Judge presiding at, Bronx Supreme Court, Defendants **P.O. TARIK CLYBURN, SHIELD #15045, P.O. JAMES ROONEY, SHIELD#8708 AND P.O. JAMES FLEMING, SHIELD #7583 ALL OF THE 44TH PRECINCT** deliberately and maliciously prosecuted Plaintiff **RAYMOND COLON**, an innocent man without any probable cause whatsoever, by filing or causing a felony complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

14. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false, perjurious and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

15. The commencement of these criminal proceedings under Docket No. 2008BX017245 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

16. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearance to defend his liberty against these unjust charges.

AS AND FOR A FIFTH CAUSE OF ACTION

17. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs “1” through “16” as it set forth at length herein.

18. Defendants **P.O. TARIK CLYBURN, SHIELD #15045, P.O. JAMES ROONEY, SHIELD #8708 AND P.O. JAMES FLEMING, SHIELD #7583 ALL OF THE 44TH PRECINCT** were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

19. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

20. Plaintiff **RAYMOND COLON** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to [42 United States Code, Section 1983](#) and [42 United States Code, Section 1988](#).

21. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

22. On or about March 16, 2008 the Defendants, armed police, while effectuating the seizure of the Plaintiff **RAYMOND COLON**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so. Further, the plaintiff was subjected to a warrantless strip search with cavity inspection even though the defendants did not possess a reasonable and/or probable cause to believe that the plaintiff had secreted contraband in or on his person.

23. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process.

24. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used the fourth and fourteenth amendments of the United States Constitution.

25. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

26. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs “1” through “25” with full force and effect as though set forth at length herein.

27. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

28. The City of New York was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

29. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
4. An individual such as the plaintiff herein cannot be subjected to a strip search with cavity inspection unless the police possess legal cause and/or have a reasonable suspicion and/or probable cause that the plaintiff has secreted contraband in or on his person.
5. Police cannot provide false, incomplete and/or perjurious information to the District Attorneys Office to induce them to bring baseless charges against individuals such as the plaintiff herein or similarly situated individuals.

29. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs “1” through “29” as it set forth at length herein.

31. Defendant City of New York was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training,

these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York

June 30, 2010

Yours, etc.

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